

BALLANTYNE ISLAMIC CENTER

BYLAWS

Fort Mill, South Carolina

Effective Date: April 02, 2026

BALLANTYNE ISLAMIC CENTER

BYLAWS

Fort Mill, South Carolina

Effective Date: April 02, 2026

TABLE OF CONTENTS

ARTICLE 1 — NAME AND PURPOSE

ARTICLE 2 — NONPROFIT STATUS

ARTICLE 3 — BOARD OF DIRECTORS

ARTICLE 4 — OFFICERS

ARTICLE 5 — MEETINGS

ARTICLE 6 — VOTING

ARTICLE 7 — FINANCIAL CONTROLS

ARTICLE 8 — CONFLICT OF INTEREST

ARTICLE 9 — LIABILITY PROTECTION

ARTICLE 10 — IMAM, EMPLOYEES, AND CONTRACTORS

ARTICLE 11 — VACANCIES

ARTICLE 12 — BOARD EXPANSION

ARTICLE 13 — EMERGENCY DECISION AUTHORITY

ARTICLE 14 — RELIGIOUS COMMITTEE

ARTICLE 15 — COMMUNITY MEMBERSHIP

ARTICLE 16 — CODE OF CONDUCT

ARTICLE 17 — BOARD ETHICS

ARTICLE 18 — FINANCIAL TRANSPARENCY

ARTICLE 19 — DONOR PROTECTION

ARTICLE 20 — VOLUNTEER POLICY

ARTICLE 21 — SECURITY AND SAFETY

ARTICLE 22 — FACILITY USE

ARTICLE 23 — AMENDMENTS

ARTICLE 24 — DISSOLUTION

ARTICLE 25 — BOARD GOVERNANCE AUTHORITY

ARTICLE 26 — LIMITED LIABILITY

ARTICLE 27 — INTERNAL DISPUTE RESOLUTION

ARTICLE 28 — GOVERNING LAW

ARTICLE 29 — BOARD DECISION FINALITY

ARTICLE 30 — RELIGIOUS AUTHORITY

ARTICLE 31 — PROPERTY CONTROL

ARTICLE 32 — BOARD MEMBER REMOVAL

ARTICLE 33 — BANK SIGNATORY

ARTICLE 34 — CHILD PROTECTION

ARTICLE 35 — COMPENSATION APPROVAL

ARTICLE 1 — NAME AND PURPOSE

The name of the organization shall be Ballantyne Islamic Center, Inc., hereinafter referred to as the “Organization” or “Ballantyne Islamic Center.” The Organization shall operate as a religious nonprofit institution established for the purpose of operating a mosque and Islamic community center serving the Muslim community in Fort Mill, South Carolina, and surrounding areas, including nearby communities in South Carolina and North Carolina.

Ballantyne Islamic Center shall provide a place for daily congregational prayers, Friday (Jumu’ah) prayers, Eid prayers, Taraweeh prayers, and other religious observances in accordance with Islamic teachings. The Organization shall also provide Islamic educational programs for

adults, youth, and children, including Qur'an classes, lectures, seminars, and community learning initiatives. Additionally, the Organization shall promote youth development, family engagement, community outreach, and charitable services consistent with Islamic principles.

The Organization may also conduct charitable activities, humanitarian assistance, food distribution, social services, counseling, interfaith dialogue, and community engagement programs intended to strengthen the Muslim community and promote cooperation and understanding within the broader community.

Ballantyne Islamic Center shall operate exclusively for religious, charitable, and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code or corresponding section of any future federal tax code. The Organization shall not engage in activities that are inconsistent with its nonprofit status or that would jeopardize its tax-exempt status.

The Organization shall have the authority to lease, purchase, acquire, develop, or operate property, hire employees and contractors, conduct fundraising activities, receive donations, and establish programs necessary to fulfill its mission and objectives. All activities of the Organization shall be conducted in accordance with applicable federal, state, and local laws and regulations.

ARTICLE 2 — NONPROFIT STATUS

Ballantyne Islamic Center shall operate exclusively as a nonprofit religious organization organized and operated for religious, charitable, and educational purposes. The Organization shall not be operated for the benefit of any private individual, Board member, officer, employee, volunteer, or donor.

No part of the net earnings, income, or assets of the Organization shall inure to the benefit of, or be distributed to, any private individual except as reasonable compensation for services rendered or reimbursement of legitimate expenses approved by the Board of Directors. Compensation, if any, shall be reasonable and consistent with nonprofit standards and shall be approved by the Board of Directors.

All funds, donations, and assets of Ballantyne Islamic Center shall be used solely to further the mission and purposes of the Organization. Such purposes may include operational expenses, educational programs, charitable services, facility maintenance, community outreach, and future development projects.

The Organization shall not participate in political campaigns on behalf of or in opposition to any candidate for public office, nor shall the Organization engage in substantial lobbying activities that would jeopardize its tax-exempt status. The Organization may engage in limited advocacy related to its mission as permitted under applicable nonprofit regulations.

Upon dissolution of the Organization, any remaining assets shall be distributed exclusively for religious, charitable, or educational purposes to one or more nonprofit organizations that qualify

under Section 501(c)(3) of the Internal Revenue Code, consistent with applicable laws and regulations.

ARTICLE 3 — BOARD OF DIRECTORS

Ballantyne Islamic Center shall be governed by a Board of Directors responsible for overall governance, fiduciary oversight, financial stewardship, and strategic direction of the Organization. The Board of Directors shall act collectively to establish policies, approve budgets, oversee operations, and ensure that the Organization fulfills its religious, charitable, and educational mission in accordance with applicable federal, state, and local laws.

The Board of Directors shall serve as the primary governing authority of Ballantyne Islamic Center and shall retain full authority over organizational governance, financial oversight, operational planning, property matters, hiring decisions, and strategic development. The Board shall act in good faith and in the best interest of the Organization and the community it serves.

The Board of Directors shall initially consist of five (5) members. The Board may expand its membership, not to exceed seven (7) members, as the Organization grows and operational needs require additional leadership, expertise, or community representation. Any expansion of the Board shall require approval by a majority vote of the current Board of Directors. The Board shall ensure that any expansion supports effective governance, operational stability, and alignment with the mission of Ballantyne Islamic Center.

In the event of the death, incapacity, or any circumstance beyond the reasonable control of a Board member that prevents continued service, the vacated Board position may first be offered to a qualified immediate family member of the departing Board member, provided such individual is willing and able to serve and meets the qualifications established by the Board of Directors.

The appointment of any family member shall require approval by a majority vote of the Board of Directors. The Board of Directors shall have the authority to evaluate the qualifications, suitability, and willingness of the proposed individual prior to appointment.

If no family member is available, willing, or approved to serve, the Board of Directors shall appoint a qualified replacement member by majority vote. The Board shall ensure that any appointed individual supports the mission, values, and governance responsibilities of Ballantyne Islamic Center. This provision is intended to preserve continuity, institutional knowledge, and leadership stability while maintaining proper governance oversight by the Board of Directors.

Board members shall act in good faith, exercise fiduciary responsibility, and support the mission of Ballantyne Islamic Center.

Board members may voluntarily resign from their position by providing notice to the Board of Directors. Upon resignation, the Board of Directors may appoint a replacement member by majority vote.

The Board of Directors shall have authority over, but not limited to, the following matters:

- Governance and policy decisions
- Financial oversight and budgeting
- Hiring and supervision of President and Vice President
- Lease agreements and property decisions
- Strategic planning and organizational development
- Religious and community programming oversight
- Risk management and compliance

All Board members shall serve in good faith, maintain confidentiality when required, and act in the best interest of Ballantyne Islamic Center and its mission.

ARTICLE 4 — OFFICERS

Ballantyne Islamic Center shall maintain a leadership structure consisting of Officers responsible for overseeing the daily operations, administration, and implementation of the policies established by the Board of Directors. The Officers shall include a President, Vice President, Secretary, and Treasurer. These Officers shall be elected or appointed by the Board of Directors and shall serve in their respective roles for terms determined by the Board of Directors.

The President shall serve as the chief executive officer of the organization and shall provide overall leadership, strategic direction, and oversight of day-to-day operations. The President shall preside over Board meetings, represent the organization in official matters, and ensure that Board decisions are implemented effectively. The President shall coordinate with Board members, committees, and community stakeholders to advance the mission of Ballantyne Islamic Center. The President shall not act unilaterally on major governance, financial, or operational decisions without approval of the Board of Directors, except as permitted under emergency authority provisions.

The Vice President shall assist the President in carrying out leadership responsibilities and shall assume the duties of the President in the event of the President's absence, incapacity, or inability to serve. The Vice President may oversee designated programs, committees, or operational initiatives as assigned by the Board of Directors or the President. The Vice President shall also support governance continuity, operational coordination, and leadership development within the organization.

The Secretary shall be responsible for maintaining official organizational records, including meeting minutes, resolutions, bylaws, policies, and legal documentation. The Secretary shall ensure that notices of meetings are properly communicated to Board members and that accurate

records of decisions and actions are maintained. The Secretary shall also assist with regulatory compliance, document retention, and organizational filings as required by applicable laws and nonprofit governance standards.

The Treasurer shall oversee financial management, budgeting, accounting, and financial reporting for Ballantyne Islamic Center. The Treasurer shall work with the President and Board of Directors to develop budgets, monitor financial performance, and ensure responsible stewardship of funds. The Treasurer shall present periodic financial reports to the Board of Directors and ensure that financial records are maintained in accordance with nonprofit standards and applicable regulations. The Treasurer shall also assist in ensuring compliance with financial policies and applicable reporting requirements.

All Officers shall act in good faith, exercise reasonable care, and operate in the best interest of the organization. Officers shall perform their duties under the authority and oversight of the Board of Directors and shall comply with the bylaws, policies, and decisions adopted by the Board.

The Board of Directors shall retain full authority to appoint, remove, replace, or reassign Officers at its discretion. The Board of Directors may remove or change any Officer position upon providing at least thirty (30) days' notice, with or without cause, and without the requirement to provide an explanatory reason.

ARTICLE 5 — MEETINGS

The Board of Directors of Ballantyne Islamic Center shall hold regular meetings to conduct organizational business, review operations, and make governance decisions. Regular meetings shall be held at least quarterly; however, the Board may elect to meet more frequently as needed to effectively manage organizational affairs.

Special meetings may be called by the President or by a majority of Board members when urgent matters arise requiring timely consideration. Notice of meetings shall be provided to Board members in advance, either in writing, electronically, or by other reasonable means, and shall include the date, time, location, and agenda items when possible.

A quorum shall consist of a majority of the Board of Directors. No official business shall be conducted unless a quorum is present. Board members may participate in meetings in person or through electronic means, such as video or teleconference, when appropriate.

All decisions made during Board meetings shall be documented in official meeting minutes. The Secretary shall record attendance, motions, votes, and decisions. Meeting minutes shall be maintained as part of the organization's official records and shall be reviewed and approved at subsequent meetings.

ARTICLE 6 — VOTING

Each Board member shall have one vote in all matters brought before the Board of Directors. Decisions of the Board shall generally be made by a majority vote of those present at a meeting where quorum exists, unless otherwise specified in these bylaws.

Major decisions requiring full Board consideration shall include, but are not limited to:

Lease agreements

Property purchase or sale

Loans or financial obligations

Hiring or termination of key personnel

Major expenditures

Amendments to bylaws

Expansion of Board membership

Voting may occur during scheduled meetings or through electronic voting when necessary. All votes shall be documented in meeting minutes. Board members are expected to participate actively in voting and decision-making to ensure proper governance.

The Board shall seek consensus where possible; however, majority vote shall determine final decisions when consensus cannot be reached.

ARTICLE 7 — FINANCIAL CONTROLS

Ballantyne Islamic Center shall maintain strong financial controls to ensure responsible stewardship of funds, transparency, and accountability. The Board of Directors shall oversee financial planning, budgeting, expenditures, and reporting.

The organization shall establish an annual operating budget, which shall be reviewed and approved by the Board. The Treasurer shall monitor budget performance and report any significant variances to the Board.

All funds received by the organization shall be deposited into official nonprofit bank accounts held in the name of Ballantyne Islamic Center. Personal bank accounts shall not be used for organizational funds. The organization may maintain separate accounts or tracking for designated funds such as construction funds, operating funds, zakat funds, or program funds.

Expenses exceeding \$2,500 shall require approval from at least two authorized Board members or officers. Expenses exceeding \$4,000 shall require approval of the Board of Directors. These thresholds may be modified by Board resolution if necessary.

Financial records, including receipts, invoices, and bank statements, shall be maintained and retained in accordance with nonprofit best practices. The Board may conduct periodic financial reviews or audits to ensure accountability.

ARTICLE 8 — CONFLICT OF INTEREST

Board members shall conduct themselves in a manner that avoids conflicts of interest and protects the integrity of the organization. A conflict of interest exists when a Board member has a personal, financial, or business interest that may influence or appear to influence decision-making.

Board members shall disclose any actual or potential conflicts of interest to the Board of Directors. Such disclosures shall be documented in meeting minutes. When a conflict of interest exists, the affected Board member shall abstain from discussion and voting on the matter.

Examples of conflicts of interest include:

Business relationships with vendors

Financial interests in contracts

Personal benefit from organizational decisions

The Board of Directors shall review disclosed conflicts and determine appropriate action to ensure fair and impartial decision-making.

ARTICLE 9 — LIABILITY PROTECTION

To the fullest extent permitted by law, Ballantyne Islamic Center shall protect its Board members, officers, volunteers, and authorized representatives from personal liability arising from their service to the organization. This protection applies to actions taken in good faith and within the scope of their responsibilities.

The organization shall indemnify Board members, officers, volunteers, and representatives against claims, liabilities, and expenses arising from their service, provided such actions were performed in good faith and in the best interest of the organization.

Ballantyne Islamic Center may obtain liability insurance, including general liability insurance and directors and officers (D&O) insurance, to further protect the organization and its leadership.

This provision is intended to encourage community leadership participation and ensure that individuals serving the organization are protected from personal risk when acting responsibly and in good faith.

ARTICLE 10 — IMAM, EMPLOYEES, AND CONTRACTORS

Ballantyne Islamic Center may hire or appoint an Imam, religious scholar, or other religious leader to provide spiritual leadership, religious instruction, counseling, and community guidance. The Imam may be engaged as an employee, independent contractor, volunteer, or contractual religious advisor, as determined by the Board of Directors. The Imam shall serve primarily in a religious and advisory capacity and shall provide recommendations to the Board of Directors regarding religious matters, programming, and community needs consistent with Islamic principles and the mission of the organization.

The Imam shall not have governance authority over the organization. The Imam shall not serve as a voting member of the Board of Directors unless separately appointed as a Board member by the Board of Directors. The Imam shall not have authority to make financial decisions, enter into contracts, approve expenditures, hire or terminate staff, or otherwise legally bind the organization unless expressly authorized by the Board of Directors.

Employees, contractors, consultants, and volunteers hired by Ballantyne Islamic Center shall operate under the direction and supervision of the President, subject to oversight by the Board of Directors. Such individuals shall not possess voting rights, governance authority, or independent decision-making authority unless explicitly granted by the Board of Directors. All employment and contractor relationships shall be governed by written agreements, employment terms, or appointment letters approved by the Board of Directors.

The Board of Directors shall retain full authority to appoint, remove, replace, or reassign the Imam, employees, contractors, consultants, and volunteers at its discretion. The President may recommend hiring, removal, or reassignment; however, the Board of Directors retains final authority over such decisions.

The Board of Directors or the President, subject to Board oversight, may remove or change the Imam, employee, or contractor by providing at least thirty (30) days' written notice, with or without cause, and without the requirement to provide an explanatory reason. The Board of Directors may also waive the notice period in situations involving misconduct, policy violations, legal concerns, or circumstances requiring immediate action in the best interest of Ballantyne Islamic Center.

This provision is intended to maintain governance stability, operational flexibility, and organizational accountability while ensuring that leadership authority remains with the Board of Directors.

ARTICLE 11 — VACANCIES

In the event that a vacancy occurs on the Board of Directors of Ballantyne Islamic Center, such vacancy shall be filled in a manner that ensures continuity of leadership, governance stability, and alignment with the mission and objectives of the organization. A vacancy may occur due to

resignation, removal, death, incapacity, expiration of term, inability to serve, or any other circumstance that prevents a Board member from fulfilling their responsibilities.

Any Board member may voluntarily resign from their position by providing written or verbal notice to the President or the Board of Directors. Such resignation shall become effective upon acceptance by the Board or at the time specified in the resignation notice. The Board shall document the resignation in meeting minutes and proceed to fill the vacancy in accordance with these bylaws.

In the event of removal of a Board member pursuant to the Board Member Removal provisions of these Bylaws, the Board of Directors shall declare the position vacant immediately upon approval of the removal vote and initiate the process to appoint a replacement Board member.

In the event of death, incapacity, prolonged absence, or inability of a Board member to perform their duties, the Board of Directors shall determine whether a vacancy exists and may declare the position vacant by majority vote of the remaining Board members.

Vacancies on the Board of Directors shall be filled by a majority vote of the remaining Board members, even if the remaining members constitute less than a quorum. The Board shall appoint a qualified individual who demonstrates integrity, commitment to the mission of Ballantyne Islamic Center, and willingness to serve in a leadership capacity.

The individual appointed to fill a vacancy shall serve for the remainder of the unexpired term of the vacated position unless otherwise determined by the Board of Directors. The Board may also designate the replacement member to serve a full term if deemed appropriate for organizational stability.

In selecting a replacement Board member, the Board of Directors may consider factors including community involvement, professional expertise, leadership experience, religious commitment, and ability to support the organization's mission and governance responsibilities.

The Board of Directors shall document all vacancy appointments in official meeting minutes, including the effective date of appointment and term duration.

This provision is intended to ensure governance continuity, organizational stability, and effective leadership for Ballantyne Islamic Center while maintaining proper oversight and fiduciary responsibility by the Board of Directors.

ARTICLE 12 — BOARD EXPANSION

The Board of Directors of Ballantyne Islamic Center shall initially consist of five (5) members and may expand to a maximum of seven (7) members as the organization grows and operational needs increase. Board expansion may be considered when additional expertise, representation, leadership support, or operational oversight is required.

New Board members shall be nominated by existing Board members and approved by a majority vote of the Board of Directors. Candidates for Board membership should demonstrate integrity, commitment to the mission of the organization, community involvement, and willingness to serve in a leadership capacity.

The Board shall ensure that expansion promotes organizational effectiveness while maintaining governance efficiency. The Board shall also seek diversity in skills, experience, and community representation when appointing new members.

No single family shall hold a majority of Board positions to ensure balanced governance and prevent conflicts of interest. Board expansion decisions shall be documented in meeting minutes and approved through formal Board action.

ARTICLE 13 — EMERGENCY DECISION AUTHORITY

In the event of urgent or emergency situations requiring immediate action to protect the organization, its members, property, or operations, the President, together with one additional officer or Board member, shall have authority to make temporary emergency decisions.

Emergency situations may include, but are not limited to:

Lease deadlines

Safety issues

Legal matters

Unexpected financial obligations

Operational disruptions

Security concerns

Emergency decisions may include approving expenditures, executing temporary agreements, or taking necessary actions to prevent harm to the organization. Emergency financial authority shall be limited to an amount not exceeding \$5,000 unless otherwise approved by the Board.

All emergency decisions shall be documented and reported to the full Board of Directors at the next scheduled meeting. The Board shall review and ratify emergency actions to ensure transparency and accountability.

ARTICLE 14 — RELIGIOUS COMMITTEE

Ballantyne Islamic Center may establish a Religious Advisory Committee to provide guidance on religious matters, programming, and community religious needs. The Religious Committee may

include the Imam, qualified scholars, and knowledgeable community members selected by the Board of Directors and President.

The Religious Committee shall provide recommendations regarding:

Prayer schedules

Religious programming

Islamic education

Community religious matters

Ramadan and Eid planning

The Religious Committee shall serve in an advisory capacity only and shall not possess governance authority, voting rights, or financial authority. Final decision-making authority shall remain with the Board of Directors.

The Board of Directors shall retain authority to appoint, modify, or dissolve the Religious Committee as needed.

ARTICLE 15 — COMMUNITY MEMBERSHIP

Ballantyne Islamic Center is established as a community-based religious organization open to all Muslims and visitors. Community members may participate in prayers, programs, educational activities, and volunteer opportunities.

Community membership shall not confer governance rights or voting authority. Ballantyne Islamic Center shall operate as a Board-governed nonprofit organization to ensure stability and efficient decision-making.

Community members are encouraged to provide feedback, suggestions, and input through community meetings, surveys, or advisory forums. The Board of Directors shall consider community input but retains final decision-making authority.

This structure promotes community participation while maintaining organizational governance stability.

ARTICLE 16 — CODE OF CONDUCT

Ballantyne Islamic Center shall maintain a respectful, safe, and welcoming environment consistent with Islamic values. All attendees, volunteers, and participants shall conduct themselves respectfully and responsibly while using the facility or participating in activities.

Prohibited conduct includes disruptive behavior, harassment, threats, illegal activity, property damage, and actions that interfere with religious activities. Attendees shall respect Masjid leadership, fellow attendees, and facility guidelines.

Parents and guardians are responsible for supervising children. The organization may implement additional guidelines to ensure safety and order.

Violations of the Code of Conduct may result in warnings, restrictions, or removal from the facility as determined by leadership. This policy is intended to maintain harmony and safety within the community.

ARTICLE 17 — BOARD ETHICS

Board members shall uphold the highest standards of integrity, accountability, and professionalism. Board members shall act in the best interest of Ballantyne Islamic Center and avoid personal benefit or conflicts of interest.

Board members shall maintain confidentiality regarding sensitive information including financial matters, personnel matters, and legal matters. Board members shall also demonstrate respectful conduct, unity, and cooperation.

Board members shall disclose conflicts of interest and abstain from decisions where conflicts exist. Board members shall support transparency, responsible governance, and ethical decision-making.

Failure to adhere to Board Ethics may result in review, corrective action, or removal by Board vote.

ARTICLE 18 — FINANCIAL TRANSPARENCY

Ballantyne Islamic Center shall maintain the highest standards of financial transparency, accountability, and responsible stewardship of all funds entrusted to the organization. The Board of Directors shall oversee all financial matters, including budgeting, expenditures, financial planning, and reporting. The Treasurer, under the supervision of the Board, shall maintain accurate financial records, including income, expenses, bank balances, and restricted funds.

The organization shall provide financial reporting to the Board of Directors on a quarterly basis, or more frequently if necessary. These reports shall include summaries of donations received, operational expenses, program expenses, and available balances. The Board may also elect to share summarized financial updates with the community to promote transparency and trust.

All funds shall be deposited into official nonprofit bank accounts in the name of Ballantyne Islamic Center. Personal bank accounts shall not be used for organizational funds. The organization may maintain separate funds, including but not limited to:

- General Operating Fund (Petty Cash)
- General Fund
- Construction Fund
- Zakat Fund
- Sadaqah Fund
- Program-Specific Funds

Expenditures exceeding \$2,500 shall require approval by at least two authorized officers or Board members. Expenditures exceeding \$5,000 shall require Board approval unless otherwise authorized under emergency authority provisions.

Financial records, receipts, and documentation shall be retained for a minimum of seven (7) years. The Board may also conduct internal financial reviews or independent audits as deemed appropriate.

ARTICLE 19 — DONOR PROTECTION

Ballantyne Islamic Center shall ensure that all donations are handled ethically, responsibly, and in accordance with donor intent. The organization shall honor donor restrictions and use funds only for the purposes specified by donors whenever such restrictions are reasonable and consistent with the organization's mission.

Donations may include:

- General Donations
- Construction Donations
- Zakat Contributions
- Sadaqah Contributions
- Program-Specific Donations
- Endowment or Long-Term Funds

Restricted donations shall be used exclusively for the designated purpose. If a restricted donation becomes impractical or impossible to use for its intended purpose, the Board of Directors may redirect funds to a closely related purpose consistent with the donor's intent.

Ballantyne Islamic Center shall protect donor privacy and confidentiality. Donor names, contribution amounts, and personal information shall not be disclosed without donor permission, except as required by law.

Donation receipts shall be provided when requested or when required for tax purposes. Donations are generally non-refundable unless due to error, duplicate transaction, or Board-approved circumstances.

ARTICLE 20 — VOLUNTEER POLICY

Volunteers play an important role in supporting the mission and operations of Ballantyne Islamic Center. Volunteers may assist with prayer setup, events, educational programs, community services, administrative tasks, and other activities as determined by the organization.

All volunteers shall operate under the supervision and direction of the Board of Directors or designated leadership. Volunteers shall not possess governance authority, voting rights, or financial decision-making authority unless separately appointed to leadership positions.

Volunteers are expected to conduct themselves professionally, respectfully, and in accordance with Islamic values and organizational policies. Volunteers shall respect Masjid leadership, follow facility guidelines, and maintain a safe environment.

The Board of Directors reserves the right to appoint, supervise, or remove volunteers as necessary. Volunteer participation is at the discretion of the organization and may be modified or terminated when appropriate.

ARTICLE 21 — SECURITY AND SAFETY

Ballantyne Islamic Center is committed to maintaining a safe, secure, and welcoming environment for all attendees, volunteers, and visitors. The organization may implement safety procedures, security measures, and emergency response plans to protect individuals and property.

Security measures may include:

- Volunteer security teams
- Safety monitoring during large gatherings
- Emergency evacuation procedures
- Incident reporting procedures
- Crowd management during events

During Friday prayers, Eid prayers, Ramadan programs, and large gatherings, the organization may designate volunteers to assist with parking, safety coordination, and emergency response.

Any incident involving safety concerns, injuries, or security issues shall be reported to leadership and documented. The Board of Directors shall review incidents and implement corrective measures if necessary.

The organization may coordinate with local authorities, emergency services, or property management when necessary to ensure public safety and compliance.

ARTICLE 22 — FACILITY USE

Ballantyne Islamic Center facilities shall primarily be used for religious worship, Islamic education, and community-based religious programs. Daily prayers, Friday prayers, Eid prayers, educational classes, and religious programming shall receive priority use of the facility.

The facility may also be used for:

- Community meetings
- Educational programs
- Youth programs
- Fundraising events
- Religious gatherings

All facility use must be consistent with Islamic values, organizational policies, lease requirements, and local regulations. Political campaigning, illegal activity, disruptive events, and activities inconsistent with the organization's mission are prohibited.

Individuals and groups using the facility must maintain cleanliness, respect property, and follow safety guidelines. The Board of Directors retains authority over scheduling, approvals, and facility use decisions.

ARTICLE 23 — AMENDMENTS

These bylaws may be amended, modified, or updated as necessary to meet the evolving needs of Ballantyne Islamic Center. Proposed amendments shall be presented to the Board of Directors for review and discussion prior to voting.

Amendments shall require approval by a two-thirds (2/3) vote of the Board of Directors. All approved amendments shall be documented in meeting minutes and incorporated into the official bylaws.

The Board shall periodically review the bylaws to ensure compliance with nonprofit laws, organizational growth, and operational needs.

ARTICLE 24 — DISSOLUTION

In the event that Ballantyne Islamic Center ceases operations or dissolves, the Board of Directors shall ensure that all debts, obligations, and liabilities are satisfied prior to distribution of remaining assets.

Upon dissolution, any remaining assets of Ballantyne Islamic Center shall be distributed exclusively to one or more nonprofit organizations that qualify under Section 501(c)(3) of the Internal Revenue Code and that have purposes consistent with religious, charitable, or educational activities.

No assets shall be distributed to individual Board members, officers, employees, or private individuals. The Board of Directors shall determine appropriate recipient organizations and document the dissolution process in accordance with applicable laws.

ARTICLE 25 — BOARD GOVERNANCE AUTHORITY

The Board of Directors shall serve as the highest governing authority of Ballantyne Islamic Center and shall have full authority over all organizational decisions, including governance, financial management, operational planning, hiring, termination, contracts, and strategic direction.

All decisions relating to the management, administration, and operation of Ballantyne Islamic Center shall be made by the Board of Directors acting collectively in accordance with these bylaws and applicable laws. No individual member, employee, volunteer, or external party shall have authority to override decisions of the Board of Directors unless required by applicable law.

This provision is intended to ensure that governance authority remains vested in the Board of Directors and that organizational decisions are made internally in accordance with the established governance structure.

ARTICLE 26 — LIMITED LIABILITY AND BOARD PROTECTION

To the fullest extent permitted by law, the Board of Directors, officers, volunteers, and authorized representatives of Ballantyne Islamic Center shall not be personally liable for the debts, obligations, or liabilities of the organization.

Ballantyne Islamic Center shall indemnify and defend Board members, officers, and authorized representatives against claims, legal actions, or liabilities arising from their service to the organization, provided such actions were taken in good faith and within the scope of their authority.

The organization may obtain Directors and Officers (D&O) liability insurance to further protect Board members and officers from personal liability.

ARTICLE 27 — INTERNAL DISPUTE RESOLUTION

In the event of any dispute involving Board members, employees, volunteers, community members, or any individual associated with Ballantyne Islamic Center, the parties shall first attempt to resolve the dispute through internal mediation conducted by the Board of Directors.

If internal mediation is unsuccessful, disputes may be referred to:

- Religious mediation
- Arbitration
- Neutral third-party mediation

Litigation shall be considered only as a last resort.

This clause is intended to minimize legal disputes and preserve community harmony.

ARTICLE 28 — GOVERNING LAW

These bylaws and the operations of Ballantyne Islamic Center shall be governed by and interpreted in accordance with the laws of the State of South Carolina.

Any legal action or proceeding involving Ballantyne Islamic Center shall be brought in the appropriate court located within the State of South Carolina.

ARTICLE 29 — BOARD DECISION FINALITY

Except where prohibited by applicable law, decisions made by the Board of Directors in accordance with these bylaws shall be considered final and binding on all officers, employees, volunteers, members, and participants of Ballantyne Islamic Center.

No individual or group shall have authority to override Board decisions outside of legal or regulatory requirements imposed by applicable law.

ARTICLE 30 — RELIGIOUS AUTHORITY

Ballantyne Islamic Center is established as a religious nonprofit organization guided by Islamic principles and values. The organization may appoint an Imam, religious scholar, or Religious

Advisory Committee to provide guidance on religious matters, educational programming, and community religious needs.

The Imam and any Religious Advisory Committee shall serve in an advisory capacity to provide guidance on religious matters including, but not limited to:

- Prayer schedules
- Religious programming
- Islamic education
- Ramadan and Eid planning
- Religious counseling and guidance
- Community religious matters

The Imam and Religious Advisory Committee shall not have governance authority over the organization. The Imam shall not serve as a voting member of the Board of Directors unless separately appointed by the Board of Directors. The Imam and Religious Advisory Committee shall not have authority over financial decisions, hiring decisions, contractual agreements, property decisions, or other governance matters unless expressly authorized by the Board of Directors.

The Board of Directors shall retain final authority over all organizational decisions, including operational, financial, administrative, and governance matters. The Board of Directors shall consider religious recommendations in good faith; however, final decision-making authority shall remain with the Board of Directors.

In the event of disagreement between the Board of Directors and the Imam or Religious Advisory Committee, the Board of Directors shall attempt to resolve the matter through consultation and mutual discussion. If resolution cannot be reached, the decision of the Board of Directors shall be final, except where prohibited by applicable law.

The Board of Directors shall retain authority to appoint, replace, or remove the Imam or members of the Religious Advisory Committee at its discretion, with or without cause, and subject to applicable contractual obligations.

This provision is intended to preserve religious guidance while maintaining governance authority, organizational stability, and operational accountability within Ballantyne Islamic Center.

ARTICLE 31 — PROPERTY CONTROL AND AUTHORITY

All real property, leased property, personal property, equipment, furnishings, and assets acquired, leased, donated, or otherwise obtained by Ballantyne Islamic Center shall be owned, controlled, and managed exclusively by Ballantyne Islamic Center as a nonprofit organization under the authority of the Board of Directors.

The Board of Directors shall retain full authority over all decisions relating to property and assets of the organization, including but not limited to:

- Lease agreements
- Property purchases
- Property sales
- Property improvements and construction
- Property financing or loans
- Use of facilities
- Property management and maintenance
- Expansion, relocation, or development decisions
- Equipment and major asset acquisitions

No individual, including founders, Board members, officers, donors, Imam, employees, contractors, volunteers, or community members, shall claim ownership, control, or decision-making authority over any property or assets of Ballantyne Islamic Center unless expressly authorized by the Board of Directors.

All property agreements, including leases, purchase agreements, financing documents, and other contractual obligations relating to property, shall require approval by the Board of Directors and shall be executed in the name of Ballantyne Islamic Center. No individual shall enter into property-related agreements on behalf of the organization without authorization from the Board of Directors.

Donations made for property acquisition, construction, capital improvements, or operational purposes shall become the sole property of Ballantyne Islamic Center and shall not create ownership rights, governance authority, or control for any donor, founder, or individual. Financial contributions shall not grant any individual ownership interest in any property or asset of Ballantyne Islamic Center.

Property of Ballantyne Islamic Center shall not be transferred, sold, assigned, mortgaged, pledged, or otherwise encumbered without approval of at least two-thirds (2/3) vote of the Board of Directors. This requirement shall apply to any transaction involving real estate, long-term leases, financing arrangements, or any significant organizational assets.

In the event of disputes relating to property ownership, control, or use, the Board of Directors shall retain decision-making authority, subject to applicable federal, state, and local laws. The Board of Directors shall ensure that all property decisions are made in the best interest of Ballantyne Islamic Center and its mission.

This provision is intended to ensure that all property and assets of Ballantyne Islamic Center remain under organizational control and are used solely to further the religious, charitable, and educational mission of the organization.

ARTICLE 32 — BOARD MEMBER REMOVAL

A member of the Board of Directors may be removed from service when such removal is determined to be in the best interest of Ballantyne Islamic Center. Grounds for removal may include, but are not limited to, misconduct, violation of organizational policies, breach of fiduciary duty, conflict of interest violations, failure to act in good faith, actions detrimental to the mission or reputation of the organization, repeated absence from Board meetings, inability to perform duties, or conduct that creates legal, financial, or operational risk for the organization.

Removal of a Board member shall require a two-thirds (2/3) vote of the remaining members of the Board of Directors, excluding the Board member subject to removal. The Board member under review shall be provided reasonable notice of the proposed removal and an opportunity to present information or explanation prior to the final vote, unless immediate removal is required to protect the organization from harm, legal exposure, or operational disruption.

If a Board member is removed, the Board of Directors shall document the removal decision in meeting minutes and proceed to fill the vacancy in accordance with the Board vacancy provisions outlined in these bylaws. This provision is intended to preserve governance integrity, organizational stability, and leadership accountability while protecting the mission of Ballantyne Islamic Center.

ARTICLE 33 — BANK SIGNATORY AND ACCOUNT CONTROL

All bank accounts, financial accounts, investment accounts, and financial instruments of Ballantyne Islamic Center shall be opened, maintained, and operated solely in the name of Ballantyne Islamic Center as a nonprofit organization. No organizational funds shall be deposited into personal accounts or accounts not formally authorized by the Board of Directors.

The Board of Directors shall designate authorized signatories for all financial accounts. At least two (2) authorized signatories shall be maintained for all bank accounts. Authorized signatories may include the President, Treasurer, Vice President, or other Board-approved officers as determined by the Board of Directors. No single individual shall have sole authority over organizational bank accounts unless specifically authorized by the Board of Directors under limited circumstances.

Any withdrawals, transfers, or payments exceeding thresholds established in the financial controls section of these bylaws shall require dual approval or multiple authorizations as determined by the Board of Directors. Online banking access, payment platforms, and financial system credentials shall be restricted to authorized individuals approved by the Board of Directors.

Upon resignation, removal, or change in leadership, all banking access, signatory authority, debit cards, credit cards, and online access privileges shall be updated promptly. The Board of Directors shall ensure removal of access for any individual no longer authorized to act on behalf of the organization.

This provision is intended to safeguard organizational funds, prevent misuse, and ensure financial accountability and transparency for Ballantyne Islamic Center.

ARTICLE 34 — CHILD PROTECTION AND BACKGROUND CHECK POLICY

Ballantyne Islamic Center is committed to maintaining a safe and secure environment for children, youth, families, and all community participants. Any volunteers, employees, contractors, or leaders working directly with minors or supervising youth programs may be subject to background checks, screening procedures, or other verification processes as determined appropriate by the Board of Directors.

Individuals working with minors may include, but are not limited to:

- Sunday school teachers
- Youth program leaders
- Event volunteers supervising minors
- Childcare providers
- Camp or program coordinators
- Transportation volunteers

The organization may establish additional child safety policies including supervision requirements, sign-in and sign-out procedures, parental consent requirements, two-adult supervision guidelines, and incident reporting procedures.

Ballantyne Islamic Center reserves the right to deny or discontinue volunteer or employment roles involving minors if safety concerns arise, background screening raises concerns, or behavior is inconsistent with organizational policies or community safety expectations.

This provision is intended to protect children, families, volunteers, and the organization while maintaining a safe and welcoming environment consistent with Islamic values and community standards.

ARTICLE 35 — COMPENSATION APPROVAL

Any compensation, salary, stipend, consulting fee, or other financial benefit provided by Ballantyne Islamic Center to any individual, including but not limited to the Imam, officers, employees, contractors, or consultants, shall require approval by the Board of Directors.

Compensation decisions shall be based on reasonable and appropriate factors, including responsibilities, qualifications, market standards, organizational financial capacity, and nonprofit best practices. The Board of Directors shall ensure that compensation is reasonable, appropriate, and consistent with nonprofit governance standards.

Any Board member, officer, or individual with a personal or financial interest in a compensation decision shall disclose such interest and abstain from discussion and voting on the matter. Such abstention shall be documented in the meeting minutes to ensure transparency and compliance with conflict-of-interest policies.

The Board of Directors shall retain authority to modify, approve, or terminate compensation arrangements based on organizational needs, performance considerations, or financial conditions. Written agreements or documentation may be used for compensation arrangements when appropriate.

This provision is intended to ensure financial transparency, prevent conflicts of interest, and protect the nonprofit status and governance integrity of Ballantyne Islamic Center.

BOARD MEMBER SIGNATURES

Name: Shaik Abdul Mannan

Signature: _____

Date: _____

Name: Amer Mohammed

Signature: _____

Date: _____

Name: Dr. Zafer Iqbal

Signature: _____

Date: _____

Name: Mahmood Mohammed

Signature: _____

Date: _____

Name: Masoom Shaik

Signature: _____

Date: _____

NOTARY ACKNOWLEDGMENT

State of _____

County of _____

On this _____ day of _____, 20____, before me, the undersigned Notary Public, personally appeared the individuals whose names are subscribed above, and acknowledged that they executed the foregoing document for the purposes therein contained.

Notary Public Signature: _____

Commission Expiration: _____